

ALITO, J., dissenting

that decision, we acknowledged that existing labor contracts might have been negotiated in reliance on *Abood*, but we noted that most labor contracts are of short duration, that unions had been on notice for some time that the Court had serious misgivings about *Abood*, and that unions could have insisted on contractual provisions to protect their interests if *Abood* later fell. *Janus, supra*, at 926–928.³³

By striking down a precedent upon which there has been massive and entirely reasonable reliance, the majority sets an important precedent about *stare decisis*. I assume that those in the majority will apply the same standard in future cases.

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Under the approach to *stare decisis* that we have taken in recent years, *Apodaca* should not be overruled. I would therefore affirm the judgment below, and I respectfully dissent.

³³ The reliance in this case also far exceeds that in *Arizona v. Gant*, 556 U. S. 332 (2009), where the Court effectively overruled a decision, *New York v. Belton*, 453 U. S. 454 (1981), that allowed a police officer to search the entire passenger compartment of a car if the officer had probable cause to arrest the driver or a passenger. 556 U. S., at 335. Police departments had trained officers in reliance on the *Belton* rule, see *Gant, supra*, at 358–360 (ALITO, J., dissenting), but the burden of retraining cannot compare with conducting a large number of retrials and potentially releasing defendants who cannot be retried due to post-trial events.